

salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the Court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, proposed litigation costs, administrative costs, and the requested representative payment of \$10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk.

1. The settlement is preliminarily approved and this Motion is **granted**.
2. the Court will execute the proposed order lodged March 2, 2026, consistent with this tentative ruling and the court clerk shall attach a copy of this tentative ruling. Where the provisions of the proposed order lodged March 2, 2026 are inconsistent with or conflict the terms of this ruling, this ruling shall prevail.
3. Class counsel are directed to serve this order to parties/counsel on the service list.
4. No appearance is required at the May 6, 2026 hearing.

8. 9:00 AM CASE NUMBER: C23-01839
CASE NAME: DREW MALM VS. SCOTT HAMMEL
***HEARING ON MOTION IN RE: LEAVE TO FILE AMENDED COMPLAINT**
FILED BY: MALM, DREW
TENTATIVE RULING:

Plaintiff's Motion for Leave to File a SAC is continued to be heard concurrently with Defendant's MSJ/A to Plaintiff's FAC on May 13, 2026, 9:00 am in Department 16.